

SENATE No. 1596

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to monitoring dry casks of spent nuclear fuel.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 1596

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1596) of Patrick M. O'Connor for legislation to monitor dry casks of spent nuclear fuel. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2685 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to monitoring dry casks of spent nuclear fuel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by:-

2 (a) Amending the title of section 5K by adding “STORAGE OF SPENT NUCLEAR
3 FUEL:” after “NUCLEAR REACTOR; and

4 (b) Adding the following to section 5K:- (I) For the purpose of preventing, mitigating, or
5 alleviating impacts on the resources of the commonwealth and to the health of its citizens from
6 radiation emitted by spent nuclear fuel at facilities that at any time generated electricity for retail
7 customers in the commonwealth, (i) the owner and operator of each such facility in the
8 commonwealth that is not a stranded asset under Chapter 164 of the Acts of 1997 that stores
9 nuclear fuel in dry casks shall report to the department of public health radiation control division,
10 on a continuous real-time basis, the temperature of and the rate of helium and radiation release

11 from each such dry cask. and (ii) the department of public health shall, in consultation with the
12 office of the attorney general, promulgate rules and regulations to adopt and implement such
13 reporting.